**NATIONAL COMPANY LAW TRIBUNAL**
**NEW DELHI BENCH (COURT- IV)**
**C.A.(CAA)123/ND/2021**

**IN THE MATTER OF SCHEME OF AMALGAMATION:**

**AMONGST**

**MIRARI INTERNATIONAL PVT. LTD.**

**Applicant No. 1/Transferor Company**

**WITH**

**MODINDIA EXIM PVT. LTD.**

**Applicant No. 2/Transferee Company**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

**Order Delivered on:-** 12 . 04.2022

**Section: 230 to 232 of the Companies Act, 2013**

**CORAM**

**SH. DHARMINDER SINGH, HON'BLE MEMBER (JUDICIAL)**
**MS. SUMITA PURKAYASTHA, HON'BLE MEMBER (TECHNICAL)**

**ORDER**

**PER: SHRI DHARMINDER SINGH MEMBER -JUDICIAL**

Under consideration is the Application No. C.A.(CAA)123/ND/2021 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies for approval of the 'Scheme of Amalgamation', which shall take effect from the Appointed Date of 01.04.2021.

2. M/s Mirari International Private Limited (hereinafter referred as the **"Transferor Company")** having CIN no. U51909DL2009PTC196555 is a Private Limited company incorporated under Erstwhile Companies Act, 1956 on 02.12.2009. The registered office of the Transferor Company is situated at B-57, Okhla Industrial Area, Phase-I, New Delhi-110020.

3. M/s Modindia Exim Private Limited (hereinafter referred as the **"Transferee Company"**) having CIN no. U74999DL2009PTC194244 is a company incorporated under Erstwhile Companies Act, 1956 on 14.09.2009. The registered office of the Transferee Company is situated at B-57, Okhla Industrial Area, Phase-I, New Delhi-110020.

4. That the present Petition has been jointly filed by all the Transferor and Transferee Companies. All the 'Transferor' and 'Transferee' Companies together are called 'Applicant Companies' hereinafter. That the Registered offices of all the Companies are in Delhi and therefore, the jurisdiction lies with this Bench.

5. It is seen from the record that the Board of Directors of all the Applicant Company vide separate meetings held on 09.08.2021 have approved the proposed 'Scheme of Amalgamation'. It is stated by the Applicant Companies that the following objectives are sought to be achieved by way of Amalgamation:

   a) *"The Proposed Scheme of amalgamation would result in business synergy, consolidation of various group company and pooling of their resources into single entity.*
   b) *The proposed scheme will result in usual economies of a centralized and large company including elimination of duplicate work, reduction in overheads, better and more productive utilization of the financial, human and other resource and enhancement of overall business efficiency.*

c) *The proposed scheme will also enable substantial saving in terms of cost incurred on compliance management and increased efficiency."*

6. All the Applicant Companies have filed their Affidavits in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that none of the Applicant Companies are under any prosecution/ investigation/ inquiry under Companies Act 2013.

7. The Applicant Companies have also placed on record the Certificate from the Statutory Auditors conforming that their Accounting Standards are in conformity with the provision of Section 133 of the Companies Act 2013.

8. The Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoAs). The Applicant Companies have filed their latest Balance Sheets as on 31.03.2021.

9. The position regarding the Applicant Company wise no. of Shareholders and Creditors and their Consent through Affidavits is summarised overleaf:

| Company | No. of Share holders | Percentage of Shareholders given Consent (in value) | No. of Secured Creditors | Percentage of secured Creditors given Consent (in value) | No. of Unsecured Creditors | Percentage of Unsecured Creditors given Consent (in value) |
|---|---|---|---|---|---|---|
| Transferor Company | 2 | 100% | Nil | N.A. | 1 | 100% |
| Transferee Company | 2 | 100% | 1 | 100% | 8 | 100% |

10. Since there is 1 Secured Creditor in Transferee Company and the consent has been provided by same. Hence, the requirement of convening meeting does not arise. Since there are 8 Un-Secured Creditors in Transferee Company and the consent has been given by them all which makes 100% as comprising of the consent all the Un-secured creditors. Hence, the requirement of convening their meeting does not arise.

11. In respect of shareholders of all the applicant companies and consent affidavits of all the shareholders of both the applicant companies have been placed on record. In view of the consent affidavits the requirement of convening of their respective meeting is hereby dispensed with.

The Application is allowed in the aforesaid terms.

-Sd-

**(SUMITA PURKAYASTHA)**
**Member (T)**

-Sd-

**(DHARMINDER SINGH)**
**Member (J)**